

Section 2 in The Central Motor Vehicles Rules, 1989

2. Definitions.

- In these rules, unless the context otherwise requires (a) "Act" means the Motor Vehicles Act, 1988 (59 of 1988); (b) ["agricultural tractor" means any mechanically propelled 4-wheel vehicle designed to work with suitable implements for various field operations and/or trailers to transport agricultural materials. Agricultural tractor is a non-transport vehicle; [Inserted by GSR 338(E), dated 26.3.1993 (w.e.f. 26.3.1993).] (c) "agricultural trailer" means a trailer generally left uncovered with single/double axle construction which is coupled to an agricultural tractor by means of two hooks and predominantly used for transporting agricultural materials;] (ca) ["combine harvester" means an agricultural equipment vehicle, self propelled or agricultural tractor powered type (either coupled to the trailer for header assembly or any other attachment of the machine) designed to perform more than one of the following tasks namely:- [Inserted by Notification No. G.S.R. 212 (E) dated 20.3.2015 (w.e.f. 1.4.2015)] (i) picking, harvesting, threshing, separating, cleaning, chopping, collecting and unloading crop or agricultural produce, such as grain, sugarcane, cotton, fodder, straw or stalk, while moving through the standing crop or agricultural produce; (ii) arrangement of bagging with a pick-up attachment to use it for handling crop that has been swathed. Explanation.-For the purpose of this clause, a combine harvester shall be a non-transport motor vehicle, the driving on the road of which is incidental to the main intended use in the fields and for traveling from one field to another, for short durations, at a speed not exceeding thirty kilometer per hour;] [(cab)] [Inserted by GSR 642(E), dated 28.7.2000 (w.e.f. 28.7.2000).] "construction equipment vehicle" means rubber tyred (including pneumatic tyred), rubber padded or steel drum wheel mounted, self-propelled, excavator, loader, backhoe, compactor roller, dumper, motor grader, mobile crane, dozer, fork lift truck, self-loading concrete mixer or any other construction equipment vehicle or combination thereof designed for off-highway operations in mining, industrial undertaking, irrigation and general construction but modified and manufactured with "on or off" or "on and off" highway capabilities. Explanation. - A construction equipment vehicle shall be a non-transport vehicle the driving on the road of which is incidental to the main off-highway function and for a short duration at a speed not exceeding 50 kms per hour, but such vehicle does not include other purely off-highway construction equipment vehicle designed and adopted for use in any enclosed premises, factory or mine other than road network, not equipped to travel on public roads on their own power;] (cb) ["E-rickshaw" means a special purpose battery operated vehicle having three wheels and intended to provide last mile connectivity for transport of passengers for hire or reward, provided - [Inserted by Notification No. GSR 709 (E), dated 8.10.2014 (w.e.f. 2.6.1989)] (i) such vehicle is constructed or adapted to carry not more than four passengers, excluding the driver, and not more than forty kilogrammes luggage in total; (ii) the net power of its motor is not more than 2000 W; (iii) the maximum speed of the vehicle is not more than twenty-five kilometer per hour; (cc) "E-cart" means a special purpose battery operated vehicle having three wheels and intended to provide last mile connectivity for carrying goods for hire or reward, provided - (i) such vehicle is constructed or adapted for carrying goods by providing a separate load body or compartment with the maximum weight three hundred and ten kilogrammes in addition to driver; (ii) the net power of its motor is not more than 2000 W; (iii) the maximum speed of the vehicle is not more than twenty-five kilometre per hour] (d) ["financier" means a person or a title

holder-cum-dealer who lets a motor vehicle on hire under an agreement of hire purchase or lease or hypothecation to the operator with a permission to get it registered in operators name as registered owner;] [Substituted by GSR 111(E), dated 10.2.2004, for Clause (d) (w.e.f. 10.2.2004).](e)[[Clauses (b) and (c) relettered as Clauses (e) and (f), respectively by GSR 338(E), dated 26.3.1993 (w.e.f. 26.3.1993).] Form means a Form appended to these rules;(f)[[Clauses (b) and (c) relettered as Clauses (e) and (f), respectively by GSR 338(E), dated 26.3.1993 (w.e.f. 26.3.1993).] section means a section of the Act;(g)[[Clauses (d) and (e) relettered as Clauses (g) and (h), respectively by GSR 338(E), dated 26.3.1993 (w.e.f. 26.3.1993).] trade certificate means a certificate issued by the registering authority under rule 35;(h)[[Clauses (d) and (e) relettered as Clauses (g) and (h), respectively by GSR 338(E), dated 26.3.1993 (w.e.f. 26.3.1993).] non-transport vehicle means a motor vehicle which is not a transport vehicle;[(i) Category L-1 means a motorcycle with maximum speed not exceeding 45 Km/h and engine capacity not exceeding 50 cc if fitted with a thermic engine or motor power not exceeding 0.5 kilo watt if fitted with electric motor;] [Inserted by GSR 400(E), dated 31.5.2002 (w.e.f. 31.5.2002).]](j)[Category L-2 means motorcycle other than Category L-1] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).];(k)[Category M means a motor vehicle with at least four wheels used for carrying passengers] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).];(l)[Category M-1 means a motor vehicle used for carriage of passengers, comprising not more than eight seats in addition to the drivers seat.] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).]Note.- Definitions of type of body work for motor vehicles of Category M1 shall be in accordance with Annexure 1 of AIS 053:2005, as amended from time to time, till the corresponding BIS specifications are notified under the Bureau of Indian Standards Act, 1986 (63 of 1986);(m)[Category M-2 means a motor vehicle used for carriage of passengers, comprising nine or more seats in addition to drivers seat and having a maximum Gross Vehicle Weight not exceeding five tonnes;] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).](n)[Category M-3 means a motor vehicle used for carriage of passengers, comprising nine or more seats in addition to drivers seat and having a Gross Vehicle Weight exceeding five tonnes;] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).](o)[Category N means a motor vehicle with at least four wheels used for carrying goods which may also carry persons in addition to the goods subject to the conditions specified in Para 3.2 of AIS 053-2005, as amended from time to time, till the corresponding BIS specifications are notified under the Bureau of Indian Standards Act, 1986 (63 of 1986);] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).](p)[Category N-1 means a motor vehicle used for carriage of goods and having a Gross Vehicle Weight not exceeding 3.5 tonnes;] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).](q)[Category N-2 means a motor vehicle used for carriage of goods and having a Gross Vehicle Weight exceeding 3.5 tonnes but not exceeding 12 tonnes;] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).](r)[Category N-3 means a motor vehicle used for carriage of goods and having a Gross Vehicle Weight exceeding 12 tonnes;] [Substituted by GSR 784(E), dated 12.11.2008 (w.e.f. 12.11.2008).]Note.- For the motor vehicles, additional details and definitions specified in AIS 053-2005, as amended from time to time, till the corresponding BIS specifications are notified under the Bureau of Indian Standards Act, 1986 (63 of 1986) shall be applicable;](s)[Smart Card means a device capable of storing data and executing commands which is a microprocessor chip mounted on a plastic card and the dimensions of the card and chip are specified in the International Organisation for Standardisation (ISO)/International Electro Technical Commission (IEC) 7816 specifications, as may be amended from time to time, and shall

be as per the specifications specified in Annexure XI. [Substituted by GSR 513(E), dated 10.8.2004 (w.e.f. 10.9.2004).] Explanation. - For the purposes of this clause, microprocessor chip shall have non-volatile re-writable memory capacity of minimum [64 Kilo Byte] consisting of application data, file headers, security definitions, and a maximum of 350 bytes for Operating System Interfacing, as specified by the Ministry of Road Transport and Highways from time to time for Driving License and Registration Certificate applications;][Note : The microprocessor chip of smart card mentioned at para I shall conform to the specification given in the Annexure for smart card based driving license and vehicle Registration documents for transport and non-transport vehicles and shall contain the information specified under these rules.] [Inserted by G.S.R. 540(E), dated 15.6.2010.](t)[International Driving Permit means the license issued by a licensing authority in India under Chapter II of the Act to an Indian National authorising the person specified therein to drive any categories of motor vehicles as specified in Form 6-A in the areas or territories of countries other than India [that are Parties to the Convention on Road Traffic signed at Geneva on 19th day of September, 1949] [Inserted by GSR 720(E), dated 10.9.2003 (w.e.f. 10.10.2003).];](u)[Battery Operated Vehicle means a vehicle adapted for use upon roads and powered exclusively by an electric motor whose traction energy is supplied exclusively by traction battery installed in the vehicle: [Inserted by GSR 589(E), dated 16.9.2005 (w.e.f. 16.9.2005).][Provided that a two wheeled battery operated vehicle shall not be deemed to be a motor vehicle if all the following conditions are verified and authorised by any testing agency specified in rule 126, namely:-(a)vehicle is equipped with an electric motor having thirty minute power less than 0.25 kW;(b)maximum speed of the vehicle is less than 25 km/hr;(c)vehicle is fitted with suitable brakes and retro-reflective devices, i.e. one white reflector in the front and one red reflector at the rear;(d)unladen weight (excluding battery weight) of the vehicle is not more than 60 kg;(e)in case of pedal assisted vehicle equipped with an auxiliary electric motor, in addition to above, the thirty minute power of the motor is less than 0.25 kW, whose output is progressively reduced and finally cut off as the vehicle reaches a speed of 25 km/hr, or sooner, if the cyclist stops pedalling.](v)"Power tiller" means an agricultural machinery used for soil preparation having a single axle in which the direction of travel and its control for field operation is performed by the operator walking behind it. This equipment may or may not have a riding attachment and when coupled to a trailer can be used for the transportation of goods. The maximum speed of the power tiller when coupled to a trailer, shall not exceed 22 km/h. The maximum haulage capacity of the Power tiller coupled to a trailer shall not exceed 1.5 tons;](w)[National Capital Region shall have the meaning assigned to it in clause (f) of section 2 of the National Capital Region Planning Board Act, 1985 (2 of 1985).] [Inserted by GSR 37(E), dated 20.1.2009 (w.e.f. 20.1.2009).](x)["modular hydraulic trailer" means a trailer module intended for carrying indivisible heavy or over dimensional cargo and having the following features, namely:- [Inserted by Notification No. G.S.R. 212 (E) dated 20.3.2015 (w.e.f. 1.4.2015)](i)swing axles with hydraulic suspension;(ii)independently steerable axles;(iii)two or more axle rows;(iv)suitable arrangement for joining such modules longitudinally or laterally or both;(v)suitable provision for joining such separate modules with spacer beam arrangement or by bolster arrangement or by girder bridge arrangement or by loading deck arrangement;(vi)suitable drawbar arrangement for being pulled or pushed or self propelled.Explanation. - For the purpose of this clause, the expressions,-(i)"spacer beam arrangement" shall mean the arrangement of rigid steel frame used for joining two separate modular hydraulic trailer units to form a single rigid chassis for movement of long cargo;(ii)"bolster arrangement" shall mean the arrangement of two separate units of modular

hydraulic trailer mounted with turn tables and the cargo rests on the turn tables, whereby cargo structure itself acts as long member of trailer chassis;(iii)"girder bridge arrangement" shall mean the arrangement of two separate units of modular hydraulic trailers mounted with turn tables, and cargo is placed on a steel girder, which is then mounted on modular hydraulic trailer, whereby the steel girder acts as the long member of the trailer chassis;(iv)"loading deck arrangement" shall mean the arrangement of two separate units of modular hydraulic trailers mounted with turn tables, and cargo is placed on a loading deck, which is then mounted on both modular hydraulic trailers, whereby the loading deck acts as the long member of the modular hydraulic trailer chassis;(vii)fitted with suitable braking system.(y)"puller tractor" means a multi-axle haulage tractor of Category N3 vehicle having-(i)suitable arrangement to pull or push modular hydraulic trailer or combination thereof under drawbar arrangement;(ii)adequate ballast weight for providing traction;(iii)minimum engine power of 260 hp; and(iv)maximum speed not exceeding twenty five kilometre per hour while pulling load;]